

HOUSE BILL 1762

By Gant

AN ACT to amend Tennessee Code Annotated, Title 8, Chapter 13; Title 23, Chapter 3; Title 66, Chapter 5, Part 1 and Title 66, Chapter 24, relative to conveyances of real property.

WHEREAS, there has been an increase in the filing of fraudulent and poorly drawn deeds in Tennessee that are causing the citizens of Tennessee to suffer economic losses concerning properties that they own or hope to purchase; and

WHEREAS, the General Assembly finds that this practice can be significantly impacted by restricting the filing of these documents to those trained in the proper preparation of deeds, mortgages, deeds of trust, restrictions, covenants, conditions, easements, and other documents affecting the title to real estate; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-13-108(a), is amended by adding the following as a new subdivision:

(14) Verify that an affidavit on a deed of conveyance of real property was duly signed by sworn declaration under penalty of perjury, if prepared by an attorney licensed to practice in this state or a title agent licensed in this state, or, if signed by the owner, a notarized affidavit stating under oath the name and address of the preparer of the document and that the preparer is an attorney licensed to practice in this state, a title insurance agent licensed in this state, the owner of the real property being transferred, or a person with legal authority to act on behalf of the owner of the real property being transferred. The sworn declaration or notarized affidavit must be in substantially the following form:

I hereby swear or affirm that I prepared the attached deed of conveyance and that I am an attorney currently licensed in Tennessee (BPR # _____), a title agent currently licensed in Tennessee (License # _____), or an actual owner of an interest in the property that is the subject of this deed.

SECTION 2. Tennessee Code Annotated, Title 66, Chapter 5, Part 1, is amended by adding the following as a new section:

66-5-111.

(a) A deed of conveyance of real property must be prepared by an attorney licensed to practice in this state, a title insurance agent licensed in this state, the owner of the real property being transferred, or a person with legal authority to act on behalf of the owner of the real property being transferred.

(b) The deed must be recorded in the county in which the property is located, pursuant to § 66-24-103.

(c) This section does not apply to:

(1) Deeds filed on behalf of the federal government, state government, or a local government, or an instrumentality of the federal government, state government, or a local government, for property owned by such government; or

(2) Deeds of trust, mortgages, or release deeds prepared by a state or national bank, savings bank, credit union, or federal farm credit association, where the financial institution possesses an interest in the property that is the subject of the property described in the deed.

SECTION 3. Tennessee Code Annotated, Section 66-24-101, is amended by adding the following as a new subsection:

(g) The county register shall not register any deed of conveyance of real property that is not prepared by an attorney licensed to practice in this state, a title

insurance agent licensed in this state, the owner of the real property being transferred, or a person with legal authority to act on behalf of the owner of the real property being transferred, as prescribed in § 66-5-105, and so stated on the document by a sworn declaration under penalty of perjury, if prepared by an attorney licensed to practice in this state or a title agent licensed in this state, or, if signed by the owner, a sworn and notarized affidavit. A failure of the record to show a compliance with the requirements of this subsection (g) does not affect the validity of the registration of any registered instrument.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it, and applies to conveyances of real property occurring on or after that date.